STANDARD OPERATING PROCEDURE			P-5200	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 03/01/07	DATE REVISED **03/11/13**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES N.R.S. 69-2427 THROUGH 69-2447 (CONCEALED HANDGUN PERMIT ACT)			
SUBJECT CONCEALED HANDGUN PERMIT	CROSS REFERENCE G-10200 EVIDENCE AND PROPERTY			

I. Purpose:

The purpose of this policy is to establish procedures for encountering individuals carrying legal concealed handguns.

II. Policy:

The Concealed Handgun Permit Act allows citizens to carry a concealed handgun after receiving a permit issued by the Nebraska State Patrol. The individual must meet the background requirements (including no convictions for a felony or crime of violence, must be a United States citizen, must be a resident of Nebraska, etc.) and must complete a handgun training and safety course. Those individuals issued concealed handgun permits must adhere to applicable state laws in reference to contact with law enforcement officers. The Sheriff's Office shall establish procedures in connection with the Concealed Handgun Permit Act.

III. Procedure:

A. Prohibited Locations for Concealed Handgun Carry: A permit holder may carry a concealed handgun anywhere in Nebraska with the exception of the following (a permit holder carrying a concealed handgun in any of the following locations commits a criminal offense): Any...

1. Police, sheriff, or Nebraska State Patrol station or office.
2. Detention facility, prison, jail, courtroom or building with a courtroom.
3. Polling place during a bona fide election.
4. Meeting of the governing body of a county, public school district, municipality, or political subdivision.
5. Financial Institution.
6. Professional, semi-professional, or collegiate athletic event.

7. School, school grounds, school owned vehicle, or school-sponsored activity or athletic event.
8. Place of worship
9. Emergency room or trauma center.
10. Political rally or fundraiser.
11. Establishment that derives over one-half of its total income from the sale of alcoholic liquor.
12. Place where the possession or carrying of a firearm is prohibited by state or federal law.
13. Place or premises where the person or entity in control of the property has prohibited the carrying concealed handguns and has posted conspicuous notice that carrying a concealed handgun is prohibited or made a request to a permit holder to remove the concealed handgun from the place or premises.
14. Employers may prohibit employees or other persons who are permit holders from carrying concealed handguns in vehicles owned by the employer.
15. Hospital
16. College or University

B. Permit Holder Duties: An individual issued a concealed handgun permit shall adhere to the following laws (failure to adhere to any of the duties is a criminal offense):

1. Any time a permit holder carries a concealed handgun, he or she must carry his or her permit and his or her Nebraska driver's license, Nebraska-issued state identification card or military identification card.

   a) The permit holder shall display both the permit and identification when asked to do so by a peace officer.

2. Whenever a permit holder who is carrying a concealed handgun is contacted by a peace officer or emergency services personnel (e.g. firefighter, paramedic, etc.), the permit holder shall immediately inform the peace officer or emergency services personnel that the permit holder is carrying a concealed weapon.

3. Permit holders shall not carry a concealed handgun while he or she is consuming alcohol or while the permit holder has remaining in his or her blood, urine, or breath any previously consumed alcohol or any controlled substance (unless the substance is a legally obtained and properly taken prescription medication).

4. A permit holder must notify the Nebraska State Patrol any time he or she discharges a handgun that results in injury to a person or damage to property.

C. Deputy Responsibilities: When a deputy comes in contact with a permit holder carrying a concealed weapon, he or she shall adhere to the following procedures:

1. The deputy may secure the handgun or direct that it be secured during the duration of the contact if the deputy determines that it is necessary for the safety of any person present. The permit holder shall submit to the order to secure the handgun, failure to submit is a criminal offense.

a) If the deputy determines the permit holder is physically and mentally capable of possessing the handgun, the deputy shall return it to him or her before the releasing him or her from the scene.

b) If the deputy determines the permit holder is not physically or mentally capable of possessing the handgun or the permit holder is placed into custody for any reason, the deputy shall take custody of the handgun.

(1) The deputy shall complete a Property Receipt form including the make, model, caliber, and serial number of the handgun. The permit holder shall be provided with a copy of the receipt. The permit holder is not required to sign the receipt.

(2) As soon as possible, the deputy shall place the handgun into safekeeping or evidence following established procedures (see G-10200 Evidence and Property).

(3) The deputy shall complete an incident report and shall include the original Property Receipt form with the report. The incident report shall include the justification for taking custody (e.g. permit holder was injured, the permit holder was arrested) of the permit holder's handgun and the requirements for release to the permit holder.

2. If a permit holder is transported from any location for medical treatment by emergency services personnel, the responding deputy shall take custody of the individual's handgun. The deputy shall adhere to the procedures established above in section III, C, 1, b).

D. Permit Seizure:

1. Deputies may seize concealed handgun permits under the following conditions:

a) The deputy arrests the permit holder for any of the following:

(1) Felony crime.

(2) Crime of violence.
(3) Unlawful use of a weapon.
(4) Crime related to controlled substances.
(5) Any criminal violation of the Concealed Handgun Permit Act including permit holder duties and prohibited locations.

b) The deputy places the permit holder into emergency protective custody pursuant to the Nebraska Mental Health Commitment Act.

2. If a deputy seizes a permit, the following procedures shall be adhered to:

a) The permit holder shall be advised that he or she will be contacted by the county attorney of the county from which the permit was issued regarding revocation proceedings.

b) The deputy shall complete an appropriate incident report and place the permit into evidence following established procedures (see G-10300 Evidence and Property).

c) An Application for Revocation of Concealed Handgun Permit form shall be completed and forwarded to the county attorney of the county from which the permit was issued. A copy of the form shall also be forwarded to the Nebraska State Patrol Criminal Identification Division and a copy shall be included with the incident report.